

Smt Shiuli Sharma (Nee Panja) vs Sri Vivek Sharma on 24 February, 2021

Author: Arindam Sinha

Bench: Arindam Sinha

24.02.2021
Item No. 12
Ct. No. 04
PG

F.A.T. 20 of 2021
With
I.A. no. CAN 1 of 2021

Smt Shiuli Sharma (nee Panja)
Vs.
Sri Vivek Sharma

Mr. Amitava Paine
Ms. Manideepa (Paul) Roy....for applicant/appellant/
wife

Mr. Supriyo Das.....for respondent/husband

Mr. Paine, learned advocate appears on behalf of applicant/appellant/wife, in support of the application for stay of operation of impugned judgment and decree dated 24th September, 2020. Mr. Das, learned advocate appears on behalf of respondent/husband and files affidavit in opposition. Affidavit in reply is also filed. Mr. Paine relies on views expressed by a learned single Judge of this Court in Kajal Chowdhury Vs. Dilip Chowdhury reported in AIR 2004 Cal. 113.

The affidavit in opposition discloses a marriage certificate where details given are of respondent/husband and the person he has married. The marriage was registered on 28 th January, 2021 and date of social marriage given as on 28 th December, 2020. In context of those facts we see section 15 in Hindu Marriage Act, 1955. Respondent/husband could have remarried upon expiry of time for appeal from impugned judgment and decree dated 24th September, 2020 or on appeal presented, it having been dismissed. Section 28 provides for time of appeal to be ninety days.

We find date of social marriage is after expiry of ninety days from date of impugned judgment and decree. The appeal was filed thereafter on 12 th January, 2021. At this stage Mr. Paine submits, his client received certified copy of judgment and decree on 7th December, 2020. Forthwith thereafter steps were taken for filing the appeal and there is no reported delay. Mr. Das submits, application for certified copy was put in belatedly by applicant/appellant.

Section 8 provides for registration of Hindu marriages. Sub-section (5) in section 8 says as follows:

"(5)Notwithstanding anything contained in this section, the validity of any Hindu marriage shall in no way be affected by the omission to make the entry."

The social marriage of respondent/husband with the person he has married is stated in the marriage certificate to have taken place on 28 th December, 2020. Registration was on 28th January, 2021. In view of sub-section (5) of section 8, we must accept that respondent/husband remarried on 28 th December, 2020. The marriage is not hit by section 15. Kajal Chowdhury (supra) has no application in the facts of this case.

The application for stay of impugned judgment and decree (I.A. no. CAN 1 of 2021) is dismissed.

(Arindam Sinha, J.) (Suvra Ghosh, J.)